

24VECV00629 24VECV00629

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-04

Motion: CROSS-DEFENDANT MENA ADEL METYAS' MOTION FOR JUDGMENT ON THE PLEADINGS AS TO CROSS-COMPLAINANT SERVICE FINANCE COMPANY, LLC'S FIRST AMENDED CROSS-COMPLAINT

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Case Number: 24VECV00629 Hearing Date: September 4, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR
THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARTHA L.
HERNANDEZ, an individual,

Plaintiff,

vs.

MODERNIZE REMODELING, INC., a California
corporation; MENA ADEL METYAS, an individual; and DOES 1-20, inclusive,

Defendants.

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CASE NO: 24VECV00629

[TENTATIVE] ORDER RE: CROSS-DEFENDANT MENA ADEL METYAS' MOTION FOR
JUDGMENT ON THE PLEADINGS AS TO CROSS-COMPLAINANT SERVICE FINANCE COMPANY,
LLC'S FIRST AMENDED CROSS-COMPLAINT

Dept. U

8:30 a.m.

September 4, 2026

I.

BACKGROUND

On February 13, 2024, Plaintiff Martha
Hernandez ("Plaintiff") filed her complaint against Defendants Modernize
Remodeling, Inc. ("Modernize") and Mena Adel Metyas ("Metyas"), alleging: (1)
financial elder abuse; (2) fraud; (3) breach of contract; and (4) unlawful
business practices.

On October 14, 2024, the Court overruled
Modernize's demurrer to the complaint and denied Modernize's motion to strike
punitive damages.

On December 31, 2024, the Court granted in part and denied in part Plaintiff's motions to compel Metyas' further responses to discovery.

On March 14, 2025, Cross-Complainant Modernize filed its cross-complaint against Cross-Defendant Metyas, seeking/alleging: (1) equitable, partial, or comparative indemnity; (2) declaratory relief; (3) equitable comparative contribution; and (4) apportionment of fault based on comparative negligence and/or comparative fault.

On April 11, 2025, Plaintiff filed her first amended complaint (the "FAC") against Defendants Modernize; Metyas; Goodleap, LLC ("Goodleap"); and Service Finance Company, LLC ("Service Finance"), seeking/alleging: (1) financial elder abuse against Modernize and Metyas; (2) fraud against Modernize and Metyas; (3) breach of contract against Modernize, Goodleap, and Service Finance; (4) unlawful business practices against Modernize; (5) rescission against Modernize, Service Finance, and Goodleap; and (6) declaratory relief against Modernize, Service Finance, and Goodleap.

On May 27, 2025, Cross-Complainant Metyas filed his cross-complaint against Cross-Defendants Modernize; Best Solar Power Inc.; Renovateworks Inc.; Ultimate Business Concept, Inc.; Elkana Eric Aharoni; Kasra Baraei; David Lankry; Dragan Turkal; and Kevin Jackson, seeking/alleging: (1) willful misclassification of employee; (2) failure to pay overtime wages; (3) failure to pay earned wages; (4) failure to provide itemized wage statements; (5) failure to timely pay wages at separation; (6) unfair competition; (7) equitable indemnity; (8) contribution; (9) apportionment of fault; and (10) declaratory relief.

On June 4, 2025, Service Finance filed its answer to the FAC.

On July 16, 2025, Cross-Complainant Service Finance filed its original cross-complaint against Cross-Defendants Modernize and Metyas, seeking/alleging: (1) express contractual indemnity; (2) implied indemnity; (3) equitable indemnity and contribution; and (4) breach of contract.

On August 5, 2025, the Court granted Plaintiff's second motion to compel Metyas' further responses to discovery.

On August 27, 2025, Plaintiff filed her form amendment naming Defendants Dragan Turkalj, Elkana Arik Aharoni, and David Lankry as DOEs #1-3.

On September 30, 2025, Cross-Complainant Service Finance filed its first amended cross-complaint (the "FACC") against Cross-Defendants Modernize and Metyas, seeking/alleging: (1) express contractual indemnity against Modernize; (2) implied indemnity against Modernize and Metyas; (3) equitable indemnity and contribution against Modernize and Metyas; and (4) breach of contract against Modernize.

On October 1, 2025, Modernize, Non-Party Best Solar Power, Inc. ("Best Solar"), and Non-Party Renovateworks Inc. ("Renovateworks") filed their motions to quash Plaintiff's subpoenas for business records to Creative Business & Tax Solutions Inc.

On November 7, 2025, Modernize filed its answer to Service Finance's FACC.

On November 17, 2025, Metyas filed his answer to Service Finance's FACC.

On December 1, 2025, the Court granted Plaintiff's motions to compel Modernize to produce third-party deponents and awarded Plaintiff sanctions against Modernize in the total amount of \$3,120.00.

On February 10, 2026, the Court denied Modernize's, Best Solar's, and Renovateworks' motions to quash Plaintiff's subpoenas for business records.

On April 30, 2026, Metyas filed his motion for judgment on the pleadings as to Service Finance's FACC.

On June 24, 2026, the Court granted Modernize's motion to compel Metyas's deposition and awarded Modernize sanctions against Metyas in the total amount of \$2,900.00.

On July 7, 2026, Service Finance filed its opposition brief as to Metyas' motion for judgment on the pleadings.

On July 9, 2026, Metyas filed his reply brief.

On July 20, 2026, the Court heard Metyas's motion for judgment on the pleadings.

Metyas was ordered to file a supplemental brief by August 17, 2026. The opposition was due August 24, 2026, and the reply was due August 27, 2026.

On August 13, 2026, Metyas filed a supplemental brief.

On August 24, 2026, Service Finance filed an opposition.

On August 25, 2026, Metyas filed a reply.

II.

LEGAL STANDARD

A motion for judgment on the pleadings is the functional equivalent of a demurrer for sufficiency, and the trial court's analysis should be similar. *Kapsimalis v. Allstate Ins. Co.* (2002) 104 Cal.App.4th 667, 672. "All properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law; judicially noticeable matters may be considered." *Ibid.* There exist separate statutory and common law authorities for obtaining judgments on the pleadings. In contemporary practice, the procedures are interchangeable. *Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1055.

III.

DISCUSSION

Metyas moves for judgment on the pleadings as to Service Finance's FACC. The motion is denied.

a.

Review of Allegations in Plaintiff's FAC

Plaintiff

pleads that she was 66 years old when she met Metyas, Modernize's sales rep, at her home on February 7, 2023. Plaintiff

pleads Metyas had Plaintiff sign a \$69,900.00 contract for solar panels, a new roof, HVAC, and an electrical upgrade.

At the time, Plaintiff already had a contract with a different company for roofing and solar, financed elsewhere.

Plaintiff pleads that Metyas offered to help cancel that contract. Plaintiff pleads Modernize then called her existing contractor pretending to be her son, threatened legal action, and sent cancellation texts from Plaintiff's own phone. (FAC, ¶¶ 11-16.)

Plaintiff pleads that over the next two weeks, Metyas had Plaintiff sign two more addenda: \$23,000.00 for plumbing (for a clogged drain) and exterior coating, and another \$27,100.00 for painting. Plaintiff pleads these additions pushed the total contract to \$120,000.00 for a house under 1,500 square feet. (FAC, ¶¶ 17-19.)

Plaintiff pleads Metyas reviewed her bank statements and submitted a loan application to Service Finance listing her income as \$7,000.00/month. Plaintiff pleads this was more than double what she actually made. Plaintiff pleads she financed \$65,000.00 through Service Finance at 5.99%, with 300 payments of \$418.40 (total cost \$125,520), plus a separate \$55,000.00 loan elsewhere. Combined, the loans cost Plaintiff \$917.27/month (about a third of her income) for 20+ years. (FAC, ¶¶ 20, 22.)

Plaintiff pleads the contract called for fourteen (14) solar panels producing enough power to cover 100% of her electricity use. Plaintiff pleads Modernize only installed ten (10). Plaintiff pleads that when she asked about her electric bills, Plaintiff was shown an agreement she'd never seen before, dated the same day as the original contract, and calling for only ten (10) panels. Plaintiff pleads this modified agreement included her forged signature. (FAC, ¶¶ 23-25.)

b.

Review of Allegations in Service Finance's cross-complaint.

Service Finance denies wrongdoing in connection with Plaintiff's

claims in the FAC. Service Finance pleads that, to the extent it is found liable, all such liability stems from Cross-Defendants' negligence, thus Service Finance is entitled to indemnity. (FACC, ¶¶ 6-7.)

Service Finance pleads that it entered a written SFC Master Dealer Agreement (the "Agreement") with Modernize, under which Modernize agreed to indemnify, defend, and hold Service Finance harmless. Service Finance pleads that on June 18, 2025, Service Finance tendered Plaintiff's claims to Modernize and demanded a defense and indemnification. Service Finance pleads Modernize has not accepted the tender despite repeated follow-up. Service Finance contends this failure breaches the Agreement and has caused injury. (FACC, ¶¶ 8-13.)

Service Finance pleads that Plaintiff's claimed injuries and damages were caused in whole or part by the Cross-Defendants' negligent, reckless, or strictly liable conduct. Service Finance asserts that any liability it faces would be purely derivative and passive, arising from an obligation imposed by law rather than its own conduct, and that it has repeatedly demanded indemnification, defense, and reimbursement of attorneys' fees and costs from the Cross-Defendants. (FACC, ¶¶ 14-21.)

Service Finance pleads that it has fully performed its obligations under the Agreement, while Modernize defaulted by refusing to accept the tender of defense and indemnity as required under paragraph 15 of the Agreement. Service Finance pleads that Modernize has continued to refuse performance despite demand, and that the Agreement entitles Service Finance to recover its attorneys' fees and costs incurred in enforcing it. (FACC, ¶¶ 28-32.)

c.

The motion is denied because, taken together, the pleadings set forth a clear legal basis for Service Finance to proceed with claims for indemnity and contribution against Metyas.

Metyas moves for judgment on the pleadings as to both causes of action alleged against him in the FACC: (2) implied indemnity; and (3) equitable indemnity and contribution. (Although there are other causes of action alleged in the FACC, those claims are alleged solely against Modernize and not also against Metyas.)

This

Court permitted supplemental briefing on July 20, 2026. Metyas contends *Considine Co. v. Shadle, Hunt & Hagar* (1986) 187 Cal.App.3d 760 does not support the July 20, 2026 tentative ruling. (Supp. Mot., p. 2.) Metyas argues equitable indemnity is available only among tortfeasors jointly and severally liable for the plaintiff's injuries. (Supp. Mot., p. 2.) Metyas argues the FACC alleges no shared tort obligation of Metyas and Service Finance to Plaintiff; therefore, the second and third causes of action fail as a matter of law. (Supp. Mot., p. 2.)

Metyas

contends the facts of *Considine* are distinguishable from the facts alleged in the FACC. (Supp. Mot., p. 2.) Metyas argues that the proposed indemnitor in *Considine* was the indemnitee's own law firm; thus, the firm owed professional duties to *Considine* and its alleged negligence increased *Considine's* contractual liability to a third party. (Supp. Mot., p. 2.) Metyas argues there are no comparable facts here, as Service Finance does not allege Metyas owed any independent duty, breached any contractual obligation, or committed any tort against Service Finance. (Supp. Mot., p. 3.)

In

opposition, Service Finance argues the relevant inquiry is whether the FACC alleges potential legal responsibility by both Service Finance and Metyas for the same injury or damages. (Opp., p. 6.)

Implied

contractual indemnity is a form of equitable indemnity. (*Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1157.) Equitable indemnity "is premised on a joint legal obligation to another for damages." (*Id.*, at p. 1158.) In *Prince*, the Supreme Court held that the requirement of a joint legal obligation to the injured party applies to implied contractual indemnity as well as to traditional equitable indemnity because implied contractual indemnity has always been subject to the rule that there can be no indemnity without liability. (*Id.*, at p. 1165.)

Equitable

indemnity "applies only among defendants who are jointly and severally liable to the plaintiff," and "[w]ith limited exception, there must be some basis for tort liability against the proposed indemnitor." (*BFGC Architects Planners*,

Inc. v. Forcum/Mackey Construction, Inc. (2004) 119 Cal.App.4th 848, 852.) The required common liability is expansive and is not confined to the traditional "joint tortfeasor." (Ibid.) It reaches acts that are "concurrent or successive, joint or several, as long as they create a detriment caused by several actors." (Ibid.)

Regarding

Considine, it cannot stand alone as an independent basis for indemnity. The Considine court found that a "defendant sued for breach of contract may have a right of implied indemnity against a third person whose wrong caused the defendant's breach," and treated that implied right as distinct from equitable indemnity among tortfeasors. (Considine, supra, 187 Cal.App.3d at p. 769.) However, Considine predates several Supreme Court rulings which merged implied contractual indemnity into equitable indemnity and subject it to the joint-legal-obligation requirement. (See Bay Development, Ltd v. Superior Court (1990) 50 Cal.3d 1012; Prince, supra, 45 Cal.4th 1151.) The analysis therefore turns on whether the FACC sufficiently alleges a single injury potentially common to both cross-defendants.

The

court in County of San Mateo v. Berney is on point. In Berney, property owners sued the County for inverse condemnation and negligence for damage to their property. (County of San Mateo v. Berney (1988) 199 Cal.App.3d 1489.) The County cross-complained for equitable indemnity against private developers, alleging that their fraudulent concealment of improper fill caused or contributed to the same property damage. (Id., at p. 1492.) The trial court granted judgment on the pleadings, reasoning that only a public entity can be liable in inverse condemnation and that the developers therefore could not be joint tortfeasors with the County. (Ibid.) The Court of Appeal reversed, holding that where a "third party's fraudulent concealment caused or contributed to the injury, the third party should indemnify the public entity to the extent such conduct has contributed to a damage award against the public entity." (Id., at p. 1494.)

In

Berney, the indemnitee faced non-tort liability, while the proposed indemnitors faced fraud and negligence, however, equitable indemnity was

permitted because both concerned responsibility for the same underlying injury. Berney, thus, aligns squarely with the facts alleged in this matter.

The FAC and FACC satisfy the joint-legal-obligation requirement at this stage. Metyas is alleged to be liable to Plaintiff in tort, for fraud and financial elder abuse, arising from the conduct that procured the Service Finance agreement. (FAC, ¶¶ 20, 24-30.) Further, the FAC identifies a single financing-related injury potentially common to both cross-defendants: Plaintiff's fraud-induced assumption of, and resulting liability under, the Service Finance agreement, which the FAC alleges was based on fraud. (FAC, ¶ 24, 25.) Therefore, the claims against Service Finance and Metyas converge on the same injury, not merely on the same course of conduct. As in Berney, the cross-defendants' differing theories of liability do not, on the face of the pleadings, establish they can bear no common responsibility for that injury. Service Finance's allegations are therefore sufficiently alleged to support the second and third causes of action.

In reply, Metyas distinguishes Berney on the grounds that the county and the developers could both be responsible for the same property damage reflected in a single damage award, whereas rescission would merely unwind a contract rather than impose shared damages liability. (Rep., pp. 3-4.) Here, however, the scope and character of Plaintiff's recovery cannot be resolved from the face of the pleadings and are therefore inappropriate for a judgment on the pleadings.

Metyas separately argues that Service Finance cannot state a claim for contribution because Code of Civil Procedure section 875 creates a right of contribution only "[w]here a money judgment has been rendered jointly against two or more defendants in a tort action." (Mot., p. 4; Code Civ. Proc., § 875, subd. (a).) Because Plaintiff asserts no tort claim against Service Finance, Metyas argues, no judgment can be rendered based on the operative pleadings. (Rep., p. 4.)

As to the statute itself, Metyas is correct. A right of statutory contribution arises only where a money judgment has been rendered jointly against two or more defendants in a tort action. (See Code Civ. Proc.,

§ 875.) The FAC alleges fraud and financial elder abuse against Metyas but pleads only breach of contract, rescission, and declaratory relief against Service Finance. On the pleadings, no joint money judgment against Metyas and Service Finance “in a tort action” could be entered, and section 875 does not presently supply an independent basis for contribution against Metyas.

As discussed above, the Third Cause of Action adequately alleges equitable indemnity for the reasons stated above. A motion for judgment on the pleadings does not lie against part of a single cause of action that otherwise states a claim. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682.) Because the equitable indemnity component survives, the Court cannot enter judgment on the pleadings against the contribution theory alone.

The motion is denied.

IV.

CONCLUSION

Cross-Defendant Mena Adel Metyas' motion for judgment on the pleadings as to the First Amended Cross-Complaint filed by Cross-Complainant Service Finance Company, LLC is DENIED.

Cross-Complainant Service Finance Company,
LLC
is ORDERED to give notice.

DATED: September 4, 2026

Lee
S. Arian

Judge of the
Superior Court